



Statement of Work: Engineering Pod

Prepared for: Direct Supply Inc
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Presented: March 4th, 2024

By:

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This Statement of Work ("SOW") is entered into as of August 27th, 2018 ("Effective Date") and confirms the understanding between Direct Supply, Inc. ("Direct Supply", "DSI") and **nvisia**, LLC ("**nvisia**") with respect to Direct Supply **nvisia** Agile Team ("Project"). This SOW is pursuant to and incorporates herein by reference the terms and conditions of the Services Agreement (IT) between Direct Supply and **nvisia** (the "ITSA") signed by NVISA on December 1, 2017. In the event of a conflict or inconsistency between the terms of the ITSA and this Statement of Work, the provisions of the ITSA shall prevail. Except as expressly modified by this SOW, the ITSA remains in effect and applies to this SOW. Capitalized terms not identified in this SOW will have the meaning set forth in the ITSA.

Executive Overview

As Direct Supply continues to invest in digital modernization and innovative initiatives, they are seeking a partner with complimentary skills and abilities to help collaborate towards a goal of developing a new analytics application & tool for one of their key partners and clients.

As a result, Direct Supply is looking to add a development team with 2 resources from **nvisia** that will integrate into the team and help support the launch and development of this application.

The goal of this Statement of Work is for **nvisia** to partner with Direct Supply, providing them two resources that can help increase the velocity of their IT shop without the need to hire or pull internal resources off already existing teams. Direct Supply will set the priorities of the team, while **nvisia** will deliver the work in line with the existing team's Agile methodology.

The team will be available for extension or expansion should Direct Supply want to further pursue the relationship. Services will be provided on a time and materials for a total estimated cost of \$158,400.

Approach

The **nvisia** resources will be assigned from March 18th, 2024 through June 19th, 2024 and will have Software Engineering skillsets in .NET, React, and various front and backend development technologies used by Direct Supply along with an understanding around Agile development. Backlog tasks will be assigned, prioritized and worked on following the standards and practices in line with Direct Supply's current Agile approach.

Direct Supply is responsible for providing system requirements, access to hosting environments, and end-user testing of all work completed by the **nvisia** resources.

Work Logistics

Direct Supply will provide workstations for its consultant to perform their development work.

Key meetings (kickoff, planning, demos, etc.) will be held onsite at Direct Supply. Development will be conducted from remote.

Staffing Plan & Estimated Costs

The project will be conducted from March 18th, 2024 through June 19th, 2024 and will require one full-time resource. All billing will be on a Time and Materials basis. Director oversight by Bryan Collier will be provided free of charge.

Role	Role Description	Standard Hourly Rate	D.S. Discounted Hourly Rate	Utilization	Hours	Estimated Investment
nvisia Technical Lead (Tim Liebl)	Lead Engineer/Architect scrum master and software development capabilities to lead and mentor the team. Coordinates with D.S. business partners, management and development team to identify requirements, write and prioritize the backlog. Primary point of contact for nvisia resources on the project.	\$190	\$165	100%	528	\$87,120
nvisia Software Developer (Isaiah Heyer)	High velocity, experienced engineer to write critical components of the software, perform code reviews and mentor employees.	\$145	\$135	100%	528	\$71,280
Total Estimated Investment:						\$158,400

nvisia will invoice DSI based on the actual hours spent by **nvisia** team.

Scalable Development Teams

nvisia's projected software development team has the ability scale and add additional software development consultants or bring in new skills such as **Software & DevOps Engineers & Architects, UX Leads & UX Designers, or Product Owners.**

Assumptions

nvisia will require timely access to Direct Supply personnel to provide requirements for the development, and feedback on the design and priority of each feature.

Completion Criteria

nvisia shall have satisfied its responsibilities under this Statement of Work when 1) the Deliverables have been provided; or 2) **nvisia** has provided the specified number of person-days/hours of services; or 3) the mutually agreed upon project end date expires; or (4) Client terminates this Statement of Work with a minimum of twenty (20) business days' notice, whichever occurs first.

Agreement Parameters

Under this SOW, **nvisia** will guide, assist and materially contribute to the Project by providing the Services and Deliverables as further set forth herein.

- **nvisia** will exercise a change control for any change in scope of work. A Change Request is not billable to DSI unless approved by DSI before any work is done.
- Storing of documents and program/project artifacts on the contractor(s)' personal laptops and home computers are not permitted.
- The DSI standards, best practices, and methodologies are to be used.
- No training will be provided by DSI.
- **nvisia** will provide contractors that have the capabilities as listed under Approach.
- All **nvisia** contractors must review and adhere to Corporate Policies such as the Code of Business and Communications Systems policy. At any time DSI management determines that **nvisia** contractors are not in compliance with these policies, the contractor and **nvisia** will be notified. Depending on the severity of the issue, the contractor may be released from his/her assignment.
- Any rotation schedule, promotion, or role change must be accompanied by transfers of knowledge to one or more DSI staff or **nvisia** contractors and will be supported by a knowledge transfer validation plan. The fees for any replacement **nvisia** contractors shall not exceed the fees for the initial **nvisia** contractors and the skill level shall be equal to or better than each initial **nvisia** contractors. DSI will not be responsible to pay any additional fees or expenses arising from any change (or multiple changes) in **nvisia** contractors assigned to DSI. DSI shall not be liable for any fees associated with the replacement of **nvisia** contractors during the replacement.
- In the event a **nvisia** contractor leaves the DSI project before the planned date, **nvisia** will own the responsibility of finding and training the replacement contractor. **nvisia** will provide DSI with at least two (2) weeks' notice for replacement. **nvisia** will cover any travel costs or education fees to bring the new contractor up to speed. The new contractor will not be billable to DSI until DSI Project Manager agrees the new contractor is trained and can be a contributing member of the team.

Commitment Signatures

At **nvisia**, your success is our success. On behalf of everyone at **nvisia**, thank you for the opportunity to present this Statement of Work to assist with your initiatives and goals.

Should Direct Supply choose to pursue this SOW, once executed, the formalized ITSA and SOW will govern the relationship and supersede any prior communications.

Approval

By signing below, Direct Supply and **nvisia** agree that the complete agreement between the two companies regarding these Services consists of 1) this SOW, 2) **nvisia** non-disclosure agreement (or any equivalent agreement signed by both of us) and 3) the ITSA. Once signed, any reproduction of this SOW by reliable means (for example, photocopy or facsimile) is considered an original, unless prohibited by local law.

By signing below, Direct Supply also agrees that this proposal will become the SOW effective for this project. No work shall begin under this SOW until an executed SOW is returned to **nvisia**.

If Direct Supply internal processes require a purchase order in order for **nvisia** to invoice for the Services rendered under this SOW, the purchase order (which must reference this SOW number) should be emailed to Ken Miller at kmiller@nvisia.com before work commences.

Agreed to and accepted by:

Direct Supply Inc

Printed: Ryan Colwell

Signature: *Ryan Colwell*

Date: March 6, 2024 | 10:37 AM CST

nvisia, LLC

Printed: Shaun Lovick

Signature: *Shaun Lovick*

Date: March 6, 2024 | 10:47 AM CST